# RULES FOR THE VERIFICATION OF ACTUAL CARRIERS

of 3.09.2022

1. These rules apply to contracts of carriage and/or forwarding concluded by DONE DELIVERIES Spółka z ograniczoną odpowiedzialnością (NIP: 5542945426) (hereinafter: the Principal) with carriers and/or forwarders (hereinafter: the Contractor). The rules do not affect other provisions contained in the orders under which the parties entered into the individual contract.
2. Whenever a subcontractor is used, the Contractor shall be obliged to comply with these Rules.
3. The Contractor shall conclude a contract of carriage with a subcontractor in writing (including in electronic form).
4. The Contractor shall:
   4.1) exercise due diligence in the selection of actual carriers, i.e. select haulage companies that have been carrying out transport activities on the basis of an entry in CEIDG or KRS (National Court Register) for a period of at least 6 months and confirm that in the period of the last 3 months from the day of accepting the order for execution, there have been no changes among the partners / shareholders of the company, and they have REGON statistical number and NIP tax Identification number as well as certificates necessary to perform transport, including concessions, licences, permits and/or other documents required by law, authorising them to perform road transport.
   4.2) employ such actual carriers who have their own third party liability insurance policy appropriate to the type of haulage business carried out (national and/or international and/or cabotage operations within EU countries) with an insurance sum of not less than €300,000.
   4.3) have made available the documents constituting the basis for the conducted transport activity, including: entry in the register of activity or excerpt from CEIDG or KRS, NIP, REGON and permits and/or licences for conducting transport activity.
   4.4) checking the reliability of the actual carrier by verifying the documents (copies) received from the subcontractor confirming its business activity in transporting goods:
      - in the ICT system of the Central Register and Information on Business Activity (CEIDG), via the website: https://prod.ceidg.gov.pl or in the online KRS database on the website of the Ministry of Justice, or on the website of the European Commission http://ec.europa.eu/taxation_customs/vies/?locale=pl (the so-called VIES), or
      - by telephone at the subcontractor's main office and at companies providing references for the new subcontractor;
5. The carrier company's vehicle is insured under the UFG https://www.ufg.pl/infoportal/faces/pages_home-page?_afrLoop=7597124260359304&_afrWindowMode=0&_adf.ctrl-state=155mjk0dlv_113 or equivalent foreign register - proof of third party vehicle liability insurance is required.
6. The Contractor MUST NOT contract carriage to a further contractual carrier and/or freight forwarder who does not have the means to perform the carriage; the Contractor may only contract carriage to the actual carrier who will perform the carriage.
7. The Contractor, in contracts of carriage concluded with actual carriers or in the orders placed with them shall stipulate that:
   7.1) It is forbidden for the carrier to subcontract the carriage to further (downstream) carriers; the carriers must perform the carriage themselves,
   7.2) When accepting goods for carriage, the carrier must:

a. verify that the documentation supplied to it is complete and conforms with the actual condition of the consignment (quantity, weight, goods characteristics and numbers) and the transport order received;
b. check the quality condition of the consignment prepared for carriage and, if necessary, make notes on the consignment note;
c. to verify the condition of preparation of the consignment for carriage and, if necessary, proper packaging and protection of the goods for further transport operations;
d. verify the proper stowage and securing of the load on the vehicle;
e. confirm the acceptance of the consignment for carriage by entering the registration numbers of the vehicles in the consignment note and confirmation of receipt of the goods for carriage in accordance with the provisions of the Transport Act;
f. If there are any discrepancies between the actual state and the content of the order or the consignment note, if there are any defects in the goods or in the packaging, or if it is not possible to carry out any checking operations, the carrier shall be obliged to include his comments with justification in the consignment note before the vehicle leaves the loading place.

7.3) When handing over a consignment to the consignee, they are obliged to:

a. check that the goods are delivered to the place (at the exact address) indicated by the sender in the consignment note;
b. receive a receipt bearing the recipient's company stamp or, where the recipient is not in business, to check his details on his identity card or other identification document and to obtain a receipt signed by the consignee.

7.4. In the event of difficulties in fulfilling the contract of carriage, the actual carrier is obliged to contact only the party ordering carriage or the consignor of the consignment.

8. The Contractor, in contracts of carriage concluded with actual carriers or in the orders placed with them, shall stipulate that they are obliged to comply with the following Parking clause:

a. the driver shall with particular care protect the vehicle and the consignment against theft and burglary.
b. the driver may make a stopover of the means of transport and its load only at a car park at a 24-hour petrol station, motel, hotel, restaurant, bar or customs office situated along the route of transport on an international or national class road (marked with one, two or three digits) and on condition that the driver does not leave the means of transport unattended for longer than 60 minutes.
c. it is permissible for a loaded means of transport to stop at places other than those mentioned in point b) of these special conditions as a result of:
    - duty to receive/deliver the consignment, i.e. loading, loading, handling and unloading of the goods, including while waiting for these activities to commence;
    - need to fulfil financial and custom obligations, including the waiting time to fulfil these obligations;
    - necessary stopover at car parks at border crossings and border terminals;
    - need to call help after a vehicle failure or a road accident;
    - sudden and medically documented illness or fainting of the driver,
    - the need to refuel or top up or replace consumable fluids in the vehicle,
    - legal requirements, such as on driver's working time, driving time, the prohibition of heavy goods vehicles during certain times, provided that the driver does not leave the means of transport unattended for more than 60 minutes.
d. the driver may leave the vehicle with the cargo for period exceeding 60 minutes is allowed only when the vehicle is in the guarded car park.

e. when leaving the vehicle, the driver shall:
- take the transport documents from the vehicle,
- close all windows and lock the vehicle with all existing locks,
- activate the anti-theft devices installed in the vehicle.

9. The Contractor shall provide the Principal with information concerning the carrier authorised to pick up the consignment: personal details (name and/or first name, surname) and registration number of the vehicle, as well as the name of the driver and his identity document number.